# THE NAME CHANGES. THE FUNCTION DOES NOT.

> *"Slavery was abolished, but the logic of* **controlling and extracting** *from Black bodies was rebuilt in new legal form."*

SIX AREAS OF CONTROL · THREE PILLARS OF CONTINUITY · ONE CONTINUOUS LINE

OPENING QUESTION / CASE FILE 01

**If slavery was abolished in 1865, *why did prisons become overrun with Black bodies?***

THE ANSWER IS ASSEMBLED ACROSS TEN PANELS →

FOLLOW THE RED THREAD — 1619 → 2025

1619 SLAVERY · 1865 13TH · 1865–66 BLACK CODES · 1868 CONVICT LEASING · 1890S JIM CROW · 1971 MASS INCARCERATION · 2000S ALGORITHM

01 CHAINS ↗ · 02 COTTON ↗ · 03 THE SLAVE SHIP ↗ · 04 PRISON BARS ↗ · 05 THE LEDGER ↗ · 06 THE PANOPTICON ↗ · 07 THE FINGERPRINT ↗ · 08 THE CIRCUIT ↗ · 09 REDACTION ↗ · 10 THE RED THREAD ↗

1619

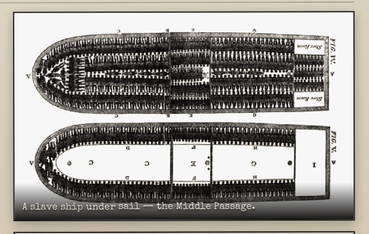
PROFIT FROM BLACK BODIES

1619–1865 · CHATTEL SLAVERY — 02 / 10

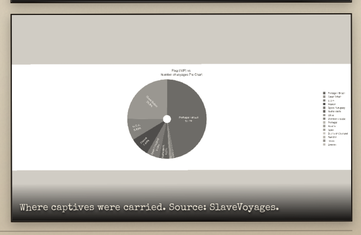
## SLAVERY & THE RACIAL ORDER

### The U.S. system was built to extract labor from Black bodies while denying their humanity.

Chattel slavery racialized labor. Enslaved people were deemed property and denied personhood — a fabricated rationale built to keep the economic engine running and to dodge the morality of its cruelties. **Counterpoint:** only a tiny share of Africans taken in the Atlantic trade landed in North America; the U.S. was one node in a hemispheric system.



A slave ship under sail — the Middle Passage.



Where captives were carried. Source: SlaveVoyages.

**12.5M** AFRICANS FORCED INTO THE ATLANTIC TRADE · **~10.7M** DISEMBARKED ALIVE IN THE AMERICAS

ASK *If most enslaved Africans went elsewhere, why focus on the U.S.?*

SRC · SlaveVoyages (34,948 voyages; est. 66–80% of expeditions) · PBS, "How Many Slaves Landed in the U.S.?"

1865

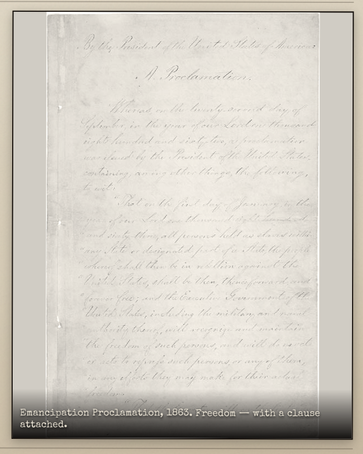
1865 · ABOLITION & EXCEPTION — 03 / 10

## THE 13TH AMENDMENT LOOPHOLE

### Emancipation arrived with an exception deliberately written into it.

The clause closes one door and leaves another open. Read it slowly — especially the comma before **"except."** This is the hinge of the whole board.

> *Neither slavery nor involuntary servitude, except as a punishment for crime … shall exist within the United States.*
>
> U.S. CONST. AMEND. XIII, § 1 (1865)



Emancipation Proclamation, 1863. Freedom — with a clause attached.

ASK *What does an exception do to a promise?*

SRC · U.S. Constitution, amend. XIII · National Archives, Emancipation Proclamation

1868

1865–66 · RECONSTRUCTION — 04 / 10

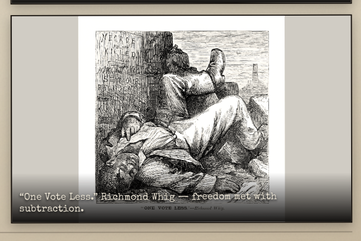
## BLACK CODES & VAGRANCY

### Freedom was re-criminalized; Black life became presumptively illegal.

Unemployment, loitering, and migration became crimes. Any infraction — even an unpaid fine — rolled into forced labor. **Same machine, new form:** fines and fees still convert poverty into punishment today.

Newspaper: "free as air" — and Carpetbagger leading Radical negro."

> *…convicted of petty crimes, like walking on the grass, vagrancy, and stealing food… Even those declared innocent were often placed in this system when they could not pay their court fees.*
>
> NEWSPAPER ACCOUNT, LIBRARY OF CONGRESS — DATE TO VERIFY



"One Vote Less." Richmond Whig — freedom met with subtraction.

ASK *Can you be free if your freedom is a crime?*

SRC · Studies in American Political Development (Cambridge UP) · LOC, Chronicling America (date under review)

1890

1868–1940S · "SLAVERY BY ANOTHER NAME" — 05 / 10

## CONVICT LEASING

### The plantation was not destroyed but rebuilt behind prison walls, and it turned a profit.

States leased Black convicts to plantations, mines, and railroads. Brutal mortality produced profit for the state and for industry. **By 1900** Black people were a large majority of Southern convicts. Douglas Blackmon called it "slavery by another name."

Reward poster: five escaped convicts from the Chattahoochee brick works.

Convict laborers with shovels, early 1900s.

**~73%** ESTIMATED SHARE OF ALABAMA'S STATE REVENUE FROM CONVICT LEASING, LATE 1800S (APPROX.; NO EXACT FIGURE SURVIVES)

ASK *What is the difference between owning a person and renting their punishment?*

SRC · Blackmon, Slavery by Another Name · Alabama Archives (1846 lease act) · LOC, Inside Adams

CONVICT LEASING → PRISON LABOR

PROFIT MOVES FROM THE PLANTATION → THE PRISON → THE PLATFORM

1971

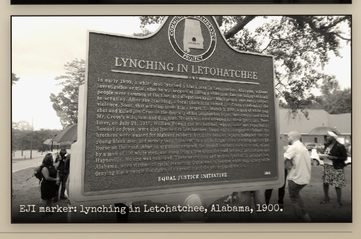
1890S–1960S · JIM CROW — 06 / 10

## THE ACCUSATION

### Criminal accusation became the justification for racial terror.

The "Black rapist" myth — manufactured and spread through media and politics — justified chain gangs, racialized policing, and lynching. No trial. No evidence. Just the charge. **Graphic photographs omitted by design;** the record carries the weight.

Segregated fountain: "WHITE" / "COLORED."




EJI marker: lynching in Letohatchee, Alabama, 1900.

**~4,400** DOCUMENTED RACIAL-TERROR LYNCHINGS OF BLACK PEOPLE, **1877–1950** (EJI)

ASK *Why did the accusation matter more than the evidence?*

SRC · EJI, Lynching in America · NAACP, The Burning at Dyersburg, 15 Crisis (1917)

2000

1971–PRESENT · WAR ON DRUGS — 07 / 10

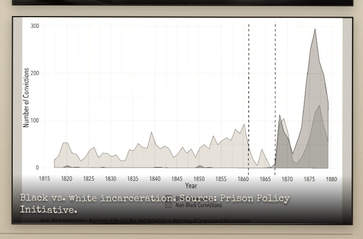
## LAW & ORDER → MASS INCARCERATION

### "Law and order" became the new racial control.

1971 War on Drugs. 1986 Anti-Drug Abuse Act (100:1 crack-to-cocaine). 1994 Crime Bill. Mandatory minimums. Selective enforcement.

> *"We could arrest their leaders, raid their homes… Did we know we were lying about the drugs? Of course we did." — John Ehrlichman, 1994 (attributed/reported; attribution disputed)*

Dr. King arrested — the "law and order" era.




Black vs. white incarceration. Source: Prison Policy Initiative.

**~5% / ~25%** U.S. SHARE OF WORLD POPULATION VS. SHARE OF WORLD PRISONERS · BLACK PEOPLE: **~13%** OF THE POPULATION, **37%** OF THE INCARCERATED

ASK *Can a law be race-neutral and still racist?*

SRC · EJI, "Nixon's War on Drugs" · Prison Policy Initiative · ACLU-WA · World Prison Brief

PLANTATION → ALGORITHM

THE LAW STOPS SAYING "BLACK." THE OUTCOMES DO NOT.

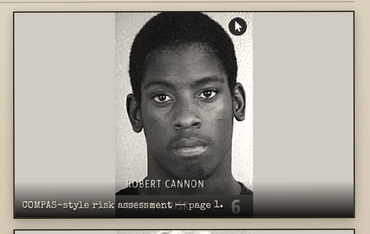
2025

2000S–PRESENT · THE ALGORITHM — 08 / 10

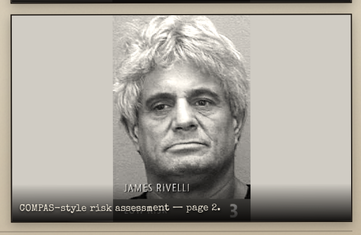
## PLANTATION → ALGORITHM

### The overseer's variable judgment became the algorithm's fixed, baked-in bias.

COMPAS recidivism scoring, predictive policing, facial recognition. The bias moves from a person to a system that hides behind math — **race-neutral on paper, not in outcome.**




COMPAS-style risk assessment — page 1.




COMPAS-style risk assessment — page 2.

**2×** BLACK DEFENDANTS FLAGGED HIGH-RISK AT TWICE THE RATE OF WHITE DEFENDANTS **(PROPUBLICA, 2016)**

**10–100×** HIGHER FACIAL-RECOGNITION FALSE POSITIVES FOR BLACK AND ASIAN FACES **(NIST, 2019)**

ASK *If the algorithm cannot see race, how does it reproduce racism?*

SRC · ProPublica, "Machine Bias" (2016) · NIST FRVT (2019) · U.S. Courts, Federal Probation (2016) · Photo: Charles Moore/Blackstar

PLANTATION → ALGORITHM

BRAZIL & ARGENTINA · 1871–PRESENT — 09 / 10

## FREE, BUT BOUND

### The U.S. is one example of a Diaspora pattern: emancipation produces new coercion.

Brazil's **Law of the Free Womb** (Sept. 28, 1871) "freed" newborns but bound them to their masters until 21; the Manumission Fund liberated 20,000+ people. Argentina's **liberto** system conditioned freedom on military service — then extended and re-enlisted it. Afro-Argentine history was written out.

Afro-Argentine candombe, Buenos Aires.

The Atlantic system, 1514–1866. Source: SlaveVoyages.

**21** YEARS BRAZIL'S "FREE" CHILDREN REMAINED BOUND TO THEIR MASTERS

ASK *What does "free" mean when freedom is conditioned?*

SRC · Phillips, The African Diaspora Experience, 119–174 · Cambridge UP, Freedoms Captives · African Arguments

EVERY SYSTEM OF CONTROL MET ORGANIZED RESISTANCE

1791–PRESENT · RESISTANCE & ERASURE — 10 / 10

## SAME STRUGGLE. NEW TERRAIN.

Every system of racial control produced organized resistance — and the fight over what gets remembered is the latest front.

**~800** PEOPLE FREED IN ONE NIGHT · COMBAHEE RIVER RAID, JULY 1863

### RESISTANCE

**1791 — HAITI**
Toussaint Louverture; the revolution that ended slavery in 1804.

**1847 — NORTH STAR**
Douglass: "Right is of no sex — Truth is of no color."

**1863 — COMBAHEE**
Tubman's raid frees ~800 people in one night.

**1878 — FIREBURN**
Queen Mary Thomas, Agnes, and Matilda lead the uprising.

MEMORY IS THE LATEST FRONT

### MEMORY / ERASURE

**1921 — TULSA**
~35 blocks burned; 100–300+ killed (official count 36); erased from records for decades.

**1985 — MOVE**
Philadelphia bombs a home from the air — and the record is contested.

Escaped enslaved people, Virginia — the first front.

**THE NAME CHANGES. THE FUNCTION DOES NOT.**

ASK *Whose memory is kept, and whose is erased?*

SRC · Zinn Education Project · National Archives, Tulsa report · UPenn, MOVE · Digital Howard, North Star

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